

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
JOHAN TOUSSAINT and GREGORY TOUSSAINT,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. CHRISTOPHER
VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN"
VIXEN, first name being fictitious as it is presently
unknown, and "JOHN DOE(S) 1-10" whose names
being fictitious, the true names unknown to plaintiffs,
the persons being NYPD employees,Defendants.
-----X**To the above named Defendants:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
June 19, 2015

Yours, etc.

FIGMAN & EPSTEIN, LLP

By: 

ALAN H. FIGMAN

Attorneys for Plaintiffs
JOHAN TOUSSAINT and GREGORY TOUSSAINT
Office and P.O. Address
11 Broadway, Suite 868
New York, New York 10004
(212) 248-7800

Index No.: _____

Date Filed: _____

Plaintiffs designate
QUEENS
County as the place of trialThe basis of venue is
Place of Occurrence**SUMMONS**Plaintiff JOHAN TOUSSAINT
resides at:
222-12 141st Avenue
Laurelton, New York 17413Plaintiff GREGORY TOUSSAINT
resides at:
170-14 140th Avenue
Jamaica, New York 11434

Defendants' Addresses:

COMPTROLLER OF THE CITY OF NEW YORK, One Centre Street, New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT, One Police Plaza, New York, New York 10007

P.O. CHRISTOPHER VIVERITO, c/o NYPD 113th Precinct, 167-02 Baisley Boulevard, Jamaica, New York 11434

SGT. STEVEN KELLS, c/o NYPD 113th Precinct, 167-02 Baisley Boulevard, Jamaica, New York 11434

P.O. "JOHN" VIXEN, c/o NYPD 113th Precinct, 167-02 Baisley Boulevard, Jamaica, New York 11434

"JOHN DOE(S) 1-10", c/o NYPD 113th Precinct, 167-02 Baisley Boulevard, Jamaica, New York 11434

Upon your failure to appear, judgment will be taken against you by plaintiff in a sum of money exceeding the monetary jurisdictional limits of all lower Courts, together with interest, costs and disbursements of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
JOHAN TOUSSAINT and GREGORY TOUSSAINT,

Plaintiffs,

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THE CITY OF NEW YORK, NEW YORK CITY
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VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN"
VIXEN, first name being fictitious as it is presently
unknown, and "JOHN DOE(S) 1-10" whose names
being fictitious, the true names unknown to plaintiffs,
the persons being NYPD employees,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiffs JOHAN TOUSSAINT and GREGORY TOUSSAINT, by their attorneys
FIGMAN & EPSTEIN, LLP, as an for their Verified Complaint, allege as follows upon
information and belief:

1. Plaintiff JOHN TOUSSAINT resides at 222-12 141st Avenue, Laurelton, New
York 17413.

2. Plaintiff GREGORY TOUSSAINT resides at 170-14 140th Avenue, Jamaica, New
York 11434.

3. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK
(hereinafter "CITY") was and still is a municipal corporation duly organized and existing under
and by virtue of the laws of the State of New York.

4. At all times hereinafter mentioned, defendant CITY, its agent(s), servant(s) and/or
employee(s), operated, maintained and controlled defendant NEW YORK CITY POLICE

DEPARTMENT (hereinafter "NYPD"), including all police officers thereof.

5. At all times hereinafter mentioned, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", were agent(s), servant(s) and/or employee(s) of defendant NYPD, a municipal agency of defendant CITY, and/or were agent(s), servant(s) and/or employee(s) of defendant CITY; defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10" and are being sued individually and in their official capacities.

6. At all times hereinafter mentioned, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10" were acting during the course of their employment by defendants NYPD and/or CITY, and within the scope of their employment as police officers with the NYPD and/or CITY.

7. At all times hereinafter mentioned, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10" were acting under color of law and authority as police officers with defendant NYPD.

8. That plaintiff JOHAN TOUSSAINT has complied with all of the conditions precedent to the bringing of this action, and in particular, had on April 28, 2015, and within 90 days after his causes of action accrued, duly served defendant CITY with a Notice of Claim and Intention to Sue, and duly served defendant CITY with an Amended Notice of Claim on May 12, 2015.

9. That plaintiff GREGORY TOUSSAINT has complied with all of the conditions precedent to the bringing of this action, and in particular, had on May 12, 2015 and within 90 days after his causes of action accrued, duly served defendant CITY with a Notice of Claim and

Intention to Sue.

10. That defendant CITY has not to date served a Demand pursuant to General Municipal Law Section 50-H requesting and/or seeking oral examinations of plaintiffs.

11. No pre-suit physician examination(s) of any plaintiff herein has been requested, and thus said examination(s) have been waived.

12. That more than thirty (30) days have elapsed since the presentations of said Notices of Claim and defendants CITY and NYPD have wholly failed, neglected and refused to make any adjournments of same.

13. That this action is filed within one (1) year and ninety (90) days from the date of the occurrence complained of herein.

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHAN TOUSSAINT:**

14. On June 22, 2014, at approximately 4:45 a.m., plaintiff JOHAN TOUSSAINT was a lawful pedestrian in the vicinity of 182nd Street, near its intersection with Farmers Boulevard in Jamaica, New York, when he was unlawfully, without just or probable cause stopped, without an arrest warrant; plaintiff JOHAN TOUSSAINT was falsely arrested, detained and seized, handcuffed with excessive force and pressure, without provocation or justification, and without his consent and permission by police officers employed by the defendants CITY and NYPD, including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", who had no reason to fear for their safety.

15. Plaintiff JOHAN TOUSSAINT was falsely arrested, detained and incarcerated at

the 113th Precinct, then at Central Booking in Queens, New York, then at the Boat Correctional Facility, from June 22, 2014 through June 27, 2014, when he was released following his ability to make bail.

16. As a result of the foregoing, plaintiff JOHAN TOUSSAINT was caused to and did suffer violations of his civil rights, negligent and intentional infliction of emotional distress, was placed in fear of his life and wellbeing, was sleep deprived, denied edible food and drink, taunted and harassed and suffered anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

17. As a result of the foregoing, plaintiff JOHAN TOUSSAINT has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHAN TOUSSAINT:**

18. Plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

19. On June 22, 2014, at approximately 4:45 a.m., and continuing thereafter up to and including June 27, 2014, defendants CITY and NYPD, through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", did wrongfully detain and imprison plaintiff JOHAN TOUSSAINT without probable cause, without an arrest warrant, in bad faith, and without his permission or consent.

20. In commencing and continuing said wrongful detainment and imprisonment, defendants caused plaintiff to be wrongfully detained in violation of the Penal Laws of the State

of New York and his constitutional rights, during which time plaintiff was handcuffed with excessive force and pressure, was denied edible food and drink, was sleep deprived, taunted, harassed and placed in fear of his well-being and life, having been placed in cells with violent felons, and was kept incarcerated against his will and all without just or probable cause.

21. Plaintiff JOHAN TOUSSAINT had not given defendants probable cause to believe that he had committed any illegal acts.

22. At the time of said plaintiff's unlawful imprisonment, defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned imprisonment was unlawful, false and without justification.

23. Defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", as well as other agent(s), servant(s) and/or employee(s) of defendants CITY and/or NYPD, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of plaintiff JOHAN TOUSSAINT.

24. As a result of the foregoing, plaintiff was caused to and did suffer violations of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

25. As a result of the foregoing, plaintiff JOHAN TOUSSAINT has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHAN TOUSSAINT:**

26. Plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

27. That following his arrest, plaintiff JOHAN TOUSSAINT was wrongfully, falsely and maliciously charged by defendants CITY, NYPD, P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", and was prosecuted for offenses he had not committed.

28. That subsequent to plaintiff JOHAN TOUSSAINT's arrest, defendants did maliciously cause a criminal prosecution to be commenced against plaintiff in the Criminal Court of the City of New York, County of Queens, by filing an Affidavit as an accusatory instrument.

29. While the said Affidavit purports to identify eye witnesses who are claimed to have identified plaintiff JOHAN TOUSSAINT at the scene of a crime, said witnesses were not present at plaintiff's arrest and at no time were such witnesses provided with a photographic assay to identify plaintiff, and no lineup was ever had for such witnesses to identify plaintiff.

30. In commencing and continuing the said malicious prosecution, defendants caused plaintiff JOHAN TOUSSAINT to be falsely charged with acts in violation of the Penal Law of the State of New York.

31. That plaintiff had not committed or attempted to commit any illegal act(s).

32. That plaintiff had not given defendant CITY, its agent(s), servant(s) and/or employee(s), including the individual defendants named herein, cause to believe that he had committed the illegal acts of which he was accused, charged and prosecuted.

33. Defendants knew, or should have known, through the exercise of proper police procedure and reasonable care, that said investigation was false, flawed and incomplete.

34. Defendants willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.

35. Defendants coerced, unduly influenced and otherwise convinced witnesses to falsely identify plaintiff as having violated the Penal Law of the State of New York.

36. That all criminal charges against plaintiff were dismissed on January 28, 2015.

37. As a result of the aforementioned malicious prosecution, plaintiff suffered and continues to suffer substantial damages.

38. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

39. That by virtue of the aforementioned acts, defendants are liable to plaintiff for malicious prosecution.

40. Said acts and conduct of defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

41. Defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agent(s), servant(s) and/or employee(s), including, but not limited to, defendants herein named, under the doctrine of *respondeat superior*.

42. By reason of the foregoing, plaintiff JOHAN TOUSSAINT has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHAN TOUSSAINT:**

43. Plaintiff repeats, reiterates and reallages each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

44. On June 22, 2014, at approximately 4:45 a.m., at the aforesaid location, defendants CITY and NYPD, through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", unlawfully and without just reason or probable cause, and without a warrant, right or privilege stopped, detained plaintiff JOHAN TOUSSAINT, all without plaintiff's permission or consent and without just or probable cause, and arrested him and caused him to be incarcerated up to and including June 27, 2014.

45. Defendants CITY and NYPD, by and through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", negligently and carelessly performed their duties in that they failed to exercise such care in the performance of their police duties as reasonably prudent police officers would have under similar circumstances.

46. As a result of defendants' negligence, plaintiff JOHAN TOUSSAINT was caused to and did suffer violations of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage of his reputation and standing within his community.

47. As a result of the defendants' negligence, plaintiff JOHAN TOUSSAINT has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHAN TOUSSAINT:**

48. Plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

49. On June 22, 2014, at approximately 4:45 a.m., at the aforesaid location, defendants CITY and NYPD, by and through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", unlawfully and without just reason or cause and without a warrant, right or privilege stopped, detained and arrested plaintiff JOHAN TOUSSAINT, all without his permission or consent and without just or probable cause, and caused him to be incarcerated up to and including June 27, 2014.

50. Plaintiff JOHAN TOUSSAINT was arrested and detained without provocation or justification by the said agent(s), servant(s) and/or employee(s) of defendants CITY and NYPD, and by defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10".

51. Plaintiff JOHAN TOUSSAINT was willfully and wrongfully accused of having committed a crime in violation of the Penal Laws of the State of New York.

52. Plaintiff JOHAN TOUSSAINT was detained, arrested and wrongfully imprisoned against his will.

53. Said detention, arrest and imprisonment were without warrant, probable cause and/or justification.

54. The actions of defendants CITY and NYPD, their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", constitute unlawful detention, arrest and imprisonment, and were designed to and did cause pain and suffering to plaintiff JOHAN TOUSSAINT in violation of his Constitutional Rights as are guaranteed under

42 U.S.C. §1983, and the Fourth and Fourteenth Amendments to the United States Constitution, and the Constitution of the State of New York.

55. Defendants CITY and NYPD violated plaintiff JOHAN TOUSSAINT's civil rights by subjecting him to an illegal search and seizure in violation of the guarantees of 42 U.S.C. §1983, the United States Constitution, and the Constitution of the State of New York.

56. The actions of defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", constitute unlawful detention, arrest and imprisonment, and were designed to and did cause pain and suffering to plaintiff JOHAN TOUSSAINT in violation of his Constitutional Rights as are guaranteed under 42 U.S.C. §1983, and the Fourth and Fourteenth Amendments to the United States Constitution, and the Constitution of the State of New York.

57. Defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", violated plaintiff JOHAN TOUSSAINT's civil rights by subjecting him to an illegal search and seizure in violation of the guarantees of 42 U.S.C. §1983, the United States Constitution, and the Constitution of the State of New York.

58. That the conduct and actions of defendants CITY and NYPD, by and through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", acting in concert and under color of State law, in detaining and imprisoning plaintiff JOHAN TOUSSAINT, were done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause pain and suffering to plaintiff JOHAN

TOUSSAINT in violation of his Constitutional rights as are guaranteed under 42 U.S.C. §1983, the Fourth and Fourteenth Amendments of the United States Constitution, and the Constitution of the State of New York.

59. Defendants CITY and NYPD, by and through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", deprived plaintiff JOHAN TOUSSAINT of his liberty, in violation of his civil and constitutional rights, as are guaranteed under 42 U.S.C. §1983, and as set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

60. Defendants CITY and NYPD, by and through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", stopped, detained, patted down, frisked and searched the person of plaintiff JOHAN TOUSSAINT, without his permission and consent and without just or probable cause, and arrested him and caused him to be incarcerated from June 22, 2014, up to and including June 27, 2014, without a warrant and without probable cause in violation of said plaintiff's civil and constitutional rights, as set forth in the Fourth Amendment of the United States Constitution.

61. The actions taken by defendants CITY and NYPD, through their agent(s), servant(s) and/or employee(s), were undertaken under color of law and would not have existed but for said defendants CITY and NYPD through its agent(s), servant(s) and/or employee(s), use of their official power.

62. The action of defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN

KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", were undertaken under color of law and would not have existed but for said defendants' use of their official power.

63. As a result of the above constitutionally impermissible conduct, plaintiff JOHAN TOUSSAINT was caused to and did suffer violations of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

64. As a result of defendants' impermissible conduct, plaintiff has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHAN TOUSSAINT:**

65. Plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

66. The supervisors and policy-making officers of defendants CITY and NYPD, as a matter of standard operating procedure and policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

67. Defendants CITY and NYPD have failed to properly and effectively train their employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

68. Defendants CITY and NYPD hired and retained in its employ certain police officers, including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", with knowledge that said police officers had vicious propensities and were otherwise unsuitable and unfit to be police

officers.

69. At all times material to this Complaint, defendants CITY and NYPD had in effect de facto policies, practices and customs that were a direct and proximate cause of the unconstitutional conduct of defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", as well as other agent(s), servant(s) and/or employee(s) of the NYPD.

70. These policies, practices and customs include, inter alia: the failure to properly screen, supervise, discipline, transfer, counsel, or otherwise control police officers engaged in the excessive use of force or in warrantless and otherwise unconstitutional searches or otherwise false arrests and impermissible imprisonments, particularly those who are repeatedly accused of such acts; the police code of silence wherein police officers regularly cover up police abuse of power by telling false and incomplete stories.

71. The policy of failure to screen, discipline, supervise, counsel, transfer, control and correct unconstitutional patterns or conditions, is evidenced, inter alia, by the following:

- a. The fact that in only a small percentage of cases involving complaints against police officers is some form of discipline recommended.
- b. The fact that cases where complaints have been lodged against police officers were inadequately investigated.
- c. The fact that the decision as to whether to discipline a police officer is taken relying primarily on police officers to conduct the investigations of alleged misconduct.
- d. The fact that, upon information and belief, only a small number of police officers have been fired for brutality since 1989.

e. The fact that of the complaints that were found to be substantiated, most do not result in any kind of meaningful discipline.

72. The policymakers of defendants CITY and NYPD knew or should have known that defendant police officers were violating people's Constitutional rights to be free from warrantless, forcible stops and searches in violation of their right to privacy and that said defendants were taking action that was shocking the conscience or otherwise violating the substantive due process rights of the people of the City of New York.

73. The fact that in the vast majority, if not all, of police abuse cases that result in verdicts or substantial settlements for the victims, defendants CITY and NYPD impose no discipline, either before or after the Court resolution, almost never reopen an investigation previously conducted after such a resolution; and sometimes promotes the officer to a position of greater authority despite the resolution.

74. Defendants CITY and NYPD tolerate and encourage police to lie to cover up the wrongful conduct of themselves and other officers, as evidenced by the Mollen Commission Report, July 7, 1994.

75. Upon information and belief, defendants CITY and NYPD failed to effectively screen, hire, train, supervise and discipline their police officers, including, but not limited to, the defendant police officers herein, for their propensity for violence, including excessive use of force and restraint, lack of truthfulness and for their failure to protect citizens from the unconstitutional conduct of other police officers, thereby permitting and allowing defendant police officers herein to falsely imprison and/or excessively detain and incarcerate plaintiff JOHAN TOUSSAINT, and to otherwise cause him injury and violations of his federal and state

constitutional rights, or to permit these actions to take place with their knowledge or consent.

76. Upon information and belief, defendant police officers have been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, defendants CITY and NYPD on notice that defendant police officers herein were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by the plaintiff herein.

77. Upon information and belief, defendants CITY and NYPD failed to put into place and otherwise maintain an inadequate structure for risk containment and stress management relative to its police officers, *inter alia*, the structure was deficient at the time of pre-selection and selection to evaluation and exchange within the command structure about the performance of individual police officers; to the training of supervisory personnel to effectively and adequately evaluate performance of an officer; and to otherwise put the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The net effect of this was to permit police officers of the NYPD to function at levels of significant and substantial risk to the public.

78. As a result of the foregoing conscious policies, practices, customs or usages, defendants CITY and NYPD have permitted and allowed for the employment and retention of individuals whose individual circumstances place the public or segments thereof at substantial risk of being the victims of violent and/or unconstitutional behavior. Such policies, practices, customs or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to plaintiff JOHAN TOUSSAINT.

79. As a result of the foregoing, plaintiff JOHAN TOUSSAINT was caused to and did

suffer violations of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within their community.

80. As a result of the foregoing, plaintiff JOHAN TOUSSAINT has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHAN TOUSSAINT:**

81. Plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

82. Defendants CITY and NYPD hired and retained in their employ certain agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", with knowledge that said police officers lacked the experience to be employed by defendants and therefore, were unfit to be police officers.

83. Defendants CITY and NYPD, hired and retained in their employ certain agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", with knowledge that said police officers lacked the deportment to be employed by defendants and therefore, were unfit to be police officers.

84. Defendants CITY and NYPD hired and retained in their employ certain agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", with knowledge that said police officers had vicious and/or undesirable propensities and were,

therefore unfit to be police officers.

85. As a result of the foregoing, plaintiff JOHAN TOUSSAINT was caused to and did suffer violations of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

86. As a result of the foregoing, plaintiff JOHAN TOUSSAINT has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Court.

**AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHAN TOUSSAINT:**

87. Plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

88. The conduct of defendants CITY and NYPD, their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", toward plaintiff JOHAN TOUSSAINT was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

89. Defendants CITY and NYPD, by and through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", acted with the desire to cause plaintiff JOHAN TOUSSAINT mental distress, or acted under circumstances known to them which made it substantially certain that they would cause such mental distress to said plaintiff.

90. Defendants CITY, NYPD, P.O. CHRISTOPHER VIVERITO, SGT. STEVEN

KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", acted with utter disregard of the consequences of their actions.

91. As a result of the foregoing, plaintiff JOHAN TOUSSAINT was caused to and did suffer violations of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing in his community.

92. As a result of the foregoing, plaintiff JOHAN TOUSSAINT has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF GREGORY TOUSSAINT:**

93. On June 22, 2014, at approximately 4:45 a.m., plaintiff GREGORY TOUSSAINT was a lawful pedestrian in the vicinity of 182nd Street, near its intersection with Farmers Boulevard in Jamaica, New York, when he was unlawfully, without just or probable cause stopped, without an arrest warrant; plaintiff GREGORY TOUSSAINT was falsely arrested, detained and seized, handcuffed with excessive force and pressure, without provocation or justification, and without his consent and permission by police officers employed by the defendants CITY and NYPD, including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", who had no reason to fear for their safety.

94. Plaintiff GREGORY TOUSSAINT was falsely arrested, detained and incarcerated at the 113th Precinct, then at Central Booking in Queens, New York, then at Rikers Island Correctional Facility, from June 22, 2014 through July 2, 2014, when he was released.

95. As a result of the foregoing, plaintiff GREGORY TOUSSAINT was caused to and

did suffer violations of his civil rights, negligent and intentional infliction of emotional distress, was placed in fear of his life and wellbeing, was sleep deprived, denied edible food and drink, taunted and harassed and suffered anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

96. As a result of the foregoing, plaintiff GREGORY TOUSSAINT has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A TENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF GREGORY TOUSSAINT:**

97. Plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

98. On June 22, 2014, at approximately 4:45 a.m., and continuing thereafter up to and including July 2, 2014, defendants CITY and NYPD, through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", did wrongfully detain and imprison plaintiff GREGORY TOUSSAINT without probable cause, without an arrest warrant, in bad faith, and without his permission or consent.

99. In commencing and continuing said wrongful detainment and imprisonment, defendants caused plaintiff to be wrongfully detained in violation of the Penal Laws of the State of New York and his constitutional rights, during which time plaintiff was handcuffed with excessive force and pressure, was denied edible food and drink, was sleep deprived, taunted, harassed and placed in fear of his well-being and life, having been placed in cells with violent felons, and was kept incarcerated against his will and all without just or probable cause.

100. Plaintiff GREGORY TOUSSAINT had not given defendants probable cause to

believe that he had committed any illegal acts.

101. At the time of said plaintiff's unlawful imprisonment, defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned imprisonment was unlawful, false and without justification.

102. Defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", as well as other agent(s), servant(s) and/or employee(s) of defendants CITY and/or NYPD, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of plaintiff GREGORY TOUSSAINT.

103. As a result of the foregoing, plaintiff was caused to and did suffer violations of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

104. As a result of the foregoing, plaintiff GREGORY TOUSSAINT has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A ELEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF GREGORY TOUSSAINT:**

105. Plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

106. That following his arrest, plaintiff GREGORY TOUSSAINT was wrongfully, falsely and maliciously charged by defendants CITY, NYPD, P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", and was prosecuted for offenses he had not committed.

107. That subsequent to plaintiff GREGORY TOUSSAINT's arrest, defendants did

maliciously cause a criminal prosecution to be commenced against plaintiff in the Criminal Court of the City of New York, County of Queens, by filing an Affidavit as an accusatory instrument.

108. While the said Affidavit purports to identify eye witnesses who are claimed to have identified plaintiff GREGORY TOUSSAINT at the scene of a crime, said witnesses were not present at plaintiff's arrest and at no time were such witnesses provided with a photographic array to identify plaintiff, and no lineup was ever had for such witnesses to identify plaintiff.

109. In commencing and continuing the said malicious prosecution, defendants caused plaintiff GREGORY TOUSSAINT to be falsely charged with acts in violation of the Penal Law of the State of New York.

110. That plaintiff had not committed or attempted to commit any illegal act(s).

111. That plaintiff had not given defendant CITY, its agent(s), servant(s) and/or employee(s), including the individual defendants named herein, cause to believe that he had committed the illegal acts of which he was accused, charged and prosecuted.

112. Defendants knew, or should have known, through the exercise of proper police procedure and reasonable care, that said investigation was false, flawed and incomplete.

113. Defendants willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.

114. Defendants coerced, unduly influenced and otherwise convinced witnesses to falsely identify plaintiff as having violated the Penal Law of the State of New York.

115. That all criminal charges against plaintiff were dismissed on February 17, 2015.

116. As a result of the aforementioned malicious prosecution, plaintiff suffered and continues to suffer substantial damages.

117. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

118. That by virtue of the aforementioned acts, defendants are liable to plaintiff for malicious prosecution.

119. Said acts and conduct of defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

120. Defendant CITY is liable for the damages suffered by plaintiff as a result of the conduct of its agent(s), servant(s) and/or employee(s), including, but not limited to, defendants herein named, under the doctrine of *respondeat superior*.

121. By reason of the foregoing, plaintiff GREGORY TOUSSAINT has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A TWELFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF GREGORY TOUSSAINT:**

122. Plaintiff repeats, reiterates and reallages each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

123. On June 22, 2014, at approximately 4:45 a.m., at the aforesaid location, defendants CITY and NYPD, through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", unlawfully and without just reason or probable cause, and without a warrant, right or privilege stopped, detained plaintiff GREGORY

TOUSSAINT, all without plaintiff's permission or consent and without just or probable cause, and arrested him and caused him to be incarcerated up to and including July 2, 2014.

124. Defendants CITY and NYPD, by and through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", negligently and carelessly performed their duties in that they failed to exercise such care in the performance of their police duties as reasonably prudent police officers would have under similar circumstances.

125. As a result of defendants' negligence, plaintiff GREGORY TOUSSAINT was caused to and did suffer violations of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage of his reputation and standing within his community.

126. As a result of the defendants' negligence, plaintiff GREGORY TOUSSAINT has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF GREGORY TOUSSAINT:**

127. Plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

128. On June 22, 2014, at approximately 4:45 a.m., at the aforesaid location, defendants CITY and NYPD, by and through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", unlawfully and without just reason or cause and without a warrant, right or privilege stopped, detained and arrested plaintiff

GREGORY TOUSSAINT, all without his permission or consent and without just or probable cause, and caused him to be incarcerated up to and including July 2, 2014.

129. Plaintiff GREGORY TOUSSAINT was arrested and detained without provocation or justification by the said agent(s), servant(s) and/or employee(s) of defendants CITY and NYPD, and by defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10".

130. Plaintiff GREGORY TOUSSAINT was willfully and wrongfully accused of having committed a crime in violation of the Penal Laws of the State of New York.

131. Plaintiff GREGORY TOUSSAINT was detained, arrested and wrongfully imprisoned against his will.

132. Said detention, arrest and imprisonment were without warrant, probable cause and/or justification.

133. The actions of defendants CITY and NYPD, their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", constitute unlawful detention, arrest and imprisonment, and were designed to and did cause pain and suffering to plaintiff GREGORY TOUSSAINT in violation of his Constitutional Rights as are guaranteed under 42 U.S.C. §1983, and the Fourth and Fourteenth Amendments to the United States Constitution, and the Constitution of the State of New York.

134. Defendants CITY and NYPD violated plaintiff GREGORY TOUSSAINT's civil rights by subjecting him to an illegal search and seizure in violation of the guarantees of 42 U.S.C. §1983, the United States Constitution, and the Constitution of the State of New York.

135. The actions of defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", constitute unlawful detention, arrest and imprisonment, and were designed to and did cause pain and suffering to plaintiff GREGORY TOUSSAINT in violation of his Constitutional Rights as are guaranteed under 42 U.S.C. §1983, and the Fourth and Fourteenth Amendments to the United States Constitution, and the Constitution of the State of New York.

136. Defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", violated plaintiff GREGORY TOUSSAINT's civil rights by subjecting him to an illegal search and seizure in violation of the guarantees of 42 U.S.C. §1983, the United States Constitution, and the Constitution of the State of New York.

137. That the conduct and actions of defendants CITY and NYPD, by and through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", acting in concert and under color of State law, in detaining and imprisoning plaintiff GREGORY TOUSSAINT, were done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause pain and suffering to plaintiff GREGORY TOUSSAINT in violation of his Constitutional rights as are guaranteed under 42 U.S.C. §1983, the Fourth and Fourteenth Amendments of the United States Constitution, and the Constitution of the State of New York.

138. Defendants CITY and NYPD, by and through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT.

STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", deprived plaintiff GREGORY TOUSSAINT of his liberty, in violation of his civil and constitutional rights, as are guaranteed under 42 U.S.C. §1983, and as set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

139. Defendants CITY and NYPD, by and through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", stopped, detained, patted down, frisked and searched the person of plaintiff GREGORY TOUSSAINT, without his permission and consent and without just or probable cause, and arrested him and caused him to be incarcerated from June 22, 2014, up to and including June 27, 2014, without a warrant and without probable cause in violation of said plaintiff's civil and constitutional rights, as set forth in the Fourth Amendment of the United States Constitution.

140. The actions taken by defendants CITY and NYPD, through their agent(s), servant(s) and/or employee(s), were undertaken under color of law and would not have existed but for said defendants CITY and NYPD through its agent(s), servant(s) and/or employee(s), use of their official power.

141. The action of defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", were undertaken under color of law and would not have existed but for said defendants' use of their official power.

142. As a result of the above constitutionally impermissible conduct, plaintiff GREGORY TOUSSAINT was caused to and did suffer violations of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and

standing within his community.

143. As a result of defendants' impermissible conduct, plaintiff has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF GREGORY TOUSSAINT:**

144. Plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

145. The supervisors and policy-making officers of defendants CITY and NYPD, as a matter of standard operating procedure and policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

146. Defendants CITY and NYPD have failed to properly and effectively train their employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

147. Defendants CITY and NYPD hired and retained in its employ certain police officers, including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", with knowledge that said police officers had vicious propensities and were otherwise unsuitable and unfit to be police officers.

148. At all times material to this Complaint, defendants CITY and NYPD had in effect de facto policies, practices and customs that were a direct and proximate cause of the unconstitutional conduct of defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", as well as other agent(s), servant(s)

and/or employee(s) of the NYPD.

149. These policies, practices and customs include, inter alia: the failure to properly screen, supervise, discipline, transfer, counsel, or otherwise control police officers engaged in the excessive use of force or in warrantless and otherwise unconstitutional searches or otherwise false arrests and impermissible imprisonments, particularly those who are repeatedly accused of such acts; the police code of silence wherein police officers regularly cover up police abuse of power by telling false and incomplete stories.

150. The policy of failure to screen, discipline, supervise, counsel, transfer, control and correct unconstitutional patterns or conditions, is evidenced, inter alia, by the following:

- a. The fact that in only a small percentage of cases involving complaints against police officers is some form of discipline recommended.
- b. The fact that cases where complaints have been lodged against police officers were inadequately investigated.
- c. The fact that the decision as to whether to discipline a police officer is taken relying primarily on police officers to conduct the investigations of alleged misconduct.
- d. The fact that, upon information and belief, only a small number of police officers have been fired for brutality since 1989.
- e. The fact that of the complaints that were found to be substantiated, most do not result in any kind of meaningful discipline.

151. The policymakers of defendants CITY and NYPD knew or should have known that defendant police officers were violating people's Constitutional rights to be free from warrantless, forcible stops and searches in violation of their right to privacy and that said

defendants were taking action that was shocking the conscience or otherwise violating the substantive due process rights of the people of the City of New York.

152. The fact that in the vast majority, if not all, of police abuse cases that result in verdicts or substantial settlements for the victims, defendants CITY and NYPD impose no discipline, either before or after the Court resolution, almost never reopen an investigation previously conducted after such a resolution; and sometimes promotes the officer to a position of greater authority despite the resolution.

153. Defendants CITY and NYPD tolerate and encourage police to lie to cover up the wrongful conduct of themselves and other officers, as evidenced by the Mollen Commission Report, July 7, 1994.

154. Upon information and belief, defendants CITY and NYPD failed to effectively screen, hire, train, supervise and discipline their police officers, including, but not limited to, the defendant police officers herein, for their propensity for violence, including excessive use of force and restraint, lack of truthfulness and for their failure to protect citizens from the unconstitutional conduct of other police officers, thereby permitting and allowing defendant police officers herein to falsely imprison and/or excessively detain and incarcerate plaintiff GREGORY TOUSSAINT, and to otherwise cause him injury and violations of his federal and state constitutional rights, or to permit these actions to take place with their knowledge or consent.

155. Upon information and belief, defendant police officers have been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, defendants CITY and NYPD on notice that defendant police officers herein were likely to engage in conduct

that would violate the civil and constitutional rights of the public, such as the conduct complained of by the plaintiff herein.

156. Upon information and belief, defendants CITY and NYPD failed to put into place and otherwise maintain an inadequate structure for risk containment and stress management relative to its police officers, *inter alia*, the structure was deficient at the time of pre-selection and selection to evaluation and exchange within the command structure about the performance of individual police officers; to the training of supervisory personnel to effectively and adequately evaluate performance of an officer; and to otherwise put the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The net effect of this was to permit police officers of the NYPD to function at levels of significant and substantial risk to the public.

157. As a result of the foregoing conscious policies, practices, customs or usages, defendants CITY and NYPD have permitted and allowed for the employment and retention of individuals whose individual circumstances place the public or segments thereof at substantial risk of being the victims of violent and/or unconstitutional behavior. Such policies, practices, customs or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to plaintiff GREGORY TOUSSAINT.

158. As a result of the foregoing, plaintiff GREGORY TOUSSAINT was caused to and did suffer violations of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within their community.

159. As a result of the foregoing, plaintiff GREGORY TOUSSAINT has been

damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF GREGORY TOUSSAINT:**

160. Plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

161. Defendants CITY and NYPD hired and retained in their employ certain agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", with knowledge that said police officers lacked the experience to be employed by defendants and therefore, were unfit to be police officers.

162. Defendants CITY and NYPD, hired and retained in their employ certain agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", with knowledge that said police officers lacked the deportment to be employed by defendants and therefore, were unfit to be police officers.

163. Defendants CITY and NYPD hired and retained in their employ certain agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", with knowledge that said police officers had vicious and/or undesirable propensities and were, therefore unfit to be police officers.

164. As a result of the foregoing, plaintiff GREGORY TOUSSAINT was caused to and did suffer violations of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing

within his community.

165. As a result of the foregoing, plaintiff GREGORY TOUSSAINT has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Court.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF GREGORY TOUSSAINT:**

166. Plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove with the same force and effect as if hereinafter set forth at length.

167. The conduct of defendants CITY and NYPD, their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", toward plaintiff GREGORY TOUSSAINT was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

168. Defendants CITY and NYPD, by and through their agent(s), servant(s) and/or employee(s), including, but not limited to, defendants P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", acted with the desire to cause plaintiff GREGORY TOUSSAINT mental distress, or acted under circumstances known to them which made it substantially certain that they would cause such mental distress to said plaintiff.

169. Defendants CITY, NYPD, P.O. CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN and "JOHN DOE(S) 1-10", acted with utter disregard of the consequences of their actions.

170. As a result of the foregoing, plaintiff GREGORY TOUSSAINT was caused to and did suffer violations of his civil rights, negligent and intentional infliction of emotional distress,

anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing in his community.

171. As a result of the foregoing, plaintiff GREGORY TOUSSAINT has been damaged in a sum of money exceeding the monetary jurisdictional limits of all lower Courts.

STATEMENT REGARDING ARTICLE 16 OF THE C.P.L.R.:

That one or more of the exceptions set forth in Article 16 of the Civil Practice Law and Rules apply to the instant causes of action, such that defendants are jointly and severally liable with any and all other tortfeasors, whether parties to this action or not.

STATEMENT REGARDING PUNITIVE DAMAGES:

Without pleading punitive damages as a separate cause of action, plaintiffs hereby put defendants on notice that defendants' respective acts and omissions, which were a cause of the subject occurrence(s), were of such an unjustifiable, willful and wanton nature, and so incredibly deviated from accepted and proper police practices and standards, that they exhibited a gross disregard for the welfare and safety of the public at large and in particular, the plaintiff herein, such that plaintiff shall request that a judgment granting punitive damages be entered against said defendants, so as to punish said defendants and deter similar conduct on the parts of others.

WHEREFORE, plaintiffs JOHAN TOUSSAINT and GREGORY TOUSSAINT demand that judgment be entered against the defendants herein as follows:

On the First Cause of Action:

In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;

On the Second Cause of Action:

In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;

On the Third Cause of Action:	In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;
On the Fourth Cause of Action:	In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;
On the Fifth Cause of Action:	In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;
On the Sixth Cause of Action:	In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;
On the Seventh Cause of Action:	In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;
On the Eighth Cause of Action:	In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;
On the Ninth Cause of Action:	In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;
On the Tenth Cause of Action:	In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;
On the Eleventh Cause of Action:	In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;
On the Twelfth Cause of Action:	In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;
On the Thirteenth Cause of Action:	In a sum of money exceeding the monetary jurisdictional limits of all lower Courts;

On the Fourteenth Cause of Action:

In a sum of money exceeding the
monetary jurisdictional limits of all
lower Courts;

On the Fifteenth Cause of Action:

In a sum of money exceeding the
monetary jurisdictional limits of all
lower Courts;

On the Sixteenth Cause of Action:

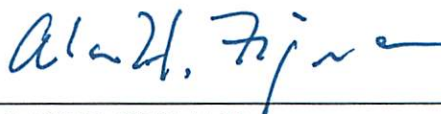
In a sum of money exceeding the
monetary jurisdictional limits of all
lower Courts;

together with interest, costs and disbursements of this action, as well as punitive damages in an
amount to be assessed by the fact-finder upon the conclusion of this action.

Yours, etc.

FIGMAN & EPSTEIN, LLP

By: _____



ALAN H. FIGMAN

Attorneys for Plaintiffs

JOHAN TOUSSAINT and

GREGORY TOUSSAINT

Office and P.O. Address

11 Broadway, Suite 868

New York, New York 10004

(212) 248-7800

ATTORNEY'S VERIFICATION

ALAN H. FIGMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under penalty of perjury:

That I am member of FIGMAN & EPSTEIN, LLP, attorneys for plaintiffs in the within action.

That I have read the within **VERIFIED COMPLAINT** and know the contents thereof, and that the same is true to my own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, I believe it to be true.

That the sources of this information and knowledge are investigations and records on file.

That the reason this verification is made by deponent, and not by plaintiffs, is that plaintiffs are not presently within the County where the attorney has his office.

Dated: New York, New York
June 19, 2015

A handwritten signature in blue ink, reading "Alan H. Figman", is written above a horizontal line.

ALAN H. FIGMAN

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

Index No.:

JOHAN TOUSSAINT and GREGORY TOUSSAINT,

Plaintiffs,

-against-

**THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O.
CHRISTOPHER VIVERITO, SGT. STEVEN KELLS, P.O. "JOHN" VIXEN, first name
being fictitious as it is presently unknown, and "JOHN DOE(S) 1-10" whose names being
fictitious, the true names unknown to plaintiffs, the persons being NYPD employees,**

Defendants.

SUMMONS AND VERIFIED COMPLAINT

**FIGMAN & EPSTEIN, LLP
Attorneys for Plaintiffs
Office & P.O. Address & Telephone
11 Broadway-Suite 868
New York, New York 10004
(212) 248-7800**